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U.S. Department of Homeland Security
U.S. Citizenship and Immigration Services
Cold Harbor Service Center
4210 Weatherbrook Road
Cold Harbor Falls, VT 05801

REQUEST FOR EVIDENCE

Receipt Number	CHB2590417338
Notice Date	March 18, 2025
Case Type	I-129, Petition for a Nonimmigrant Worker
Classification Requested	O-1B (Extraordinary Ability in the Arts)
Petitioner	Kestrel Line Artists, LLC (filing as agent)
Beneficiary	SATO-ADEYEMI, Mireille (p/k/a "MIRA SATO"), citizen of Canada
Beneficiary DOB	04/29/1991
Petition Received	January 27, 2025
Validity Period Requested	September 15, 2025 to September 14, 2028
Page 1 of 6	

ODALYS R. PEMBERTON-WARE, ESQ.
PEMBERTON-WARE IMMIGRATION LAW PLLC
88 TARNWOOD PLAZA, SUITE 1204
FAIRHAVEN SPRINGS, IL 60675

RESPOND BY: JUNE 10, 2025

IMPORTANT — READ THIS NOTICE CAREFULLY

We reviewed the Form I-129, Petition for a Nonimmigrant Worker, and the O Nonimmigrant Classification Supplement filed on behalf of the beneficiary named above. We need additional evidence before we can continue processing your petition. This notice explains what evidence is missing and what you may submit.

Send all requested evidence at one time. We will make a decision on your petition based on the record as it exists after we receive your response, or after the response deadline passes, whichever comes first. Do not send evidence in more than one mailing. Partial responses are decided on the record as filed.

You must return this entire notice, including this page, with your response. Place it on top of your submission.

THE LAW APPLIED TO THIS PETITION

To classify the beneficiary as an O-1B nonimmigrant, you must establish that the beneficiary has extraordinary ability in the arts, meaning distinction. Under 8 CFR 214.2(o)(3)(ii), *distinction* means a high level of achievement in the field of the arts evidenced by a degree of skill and recognition substantially above that ordinarily encountered, such that the person is described as prominent, renowned, leading, or well-known in the field of arts.

Under 8 CFR 214.2(o)(3)(iv), you may establish distinction through evidence that the beneficiary has been nominated for or has received a significant national or international award or prize in the particular field, or through at least three of the six evidentiary categories listed in 8 CFR 214.2(o)(3)(iv)(B)(1) through (6).

Meeting three categories does not by itself establish eligibility. We consider all evidence together to determine whether the record, in its totality, shows that the beneficiary is prominent, renowned, leading, or well-known in the field.

Petitions filed by an agent are also subject to 8 CFR 214.2(o)(2)(iv)(D) and 214.2(o)(2)(iv)(C), which require an itinerary and evidence of the terms and conditions of each engagement covering the full validity period requested.

EVIDENCE YOU SUBMITTED

The record currently contains, among other items:

- Form I-129 with O Supplement and Form G-28;
- A support letter from the petitioner dated January 21, 2025 (13 pages);
- Exhibit A — Summary of awards and honors;
- Exhibit B — Performance and production credit history;
- Exhibit C — Summary of press and published material;
- Exhibit D — Written advisory opinion;
- Exhibit E — Engagement agreements and deal memoranda;
- Exhibit F — Three-year itinerary.

WHAT WE NEED FROM YOU

Respond to each numbered request below. Where a request has lettered sub-parts, address every sub-part. Label your response so that each document is keyed to the request number it answers.

REQUEST 1 — WRITTEN ADVISORY OPINION (CONSULTATION)

What the law requires. Under 8 CFR 214.2(o)(5)(i) and (o)(5)(ii), a petition for an O-1B beneficiary must be accompanied by a written advisory opinion from a peer group, labor organization, and/or person with expertise in the beneficiary's field. The opinion must describe the beneficiary's ability and achievements in the field, describe the nature of the duties to be performed, and state whether the issuing organization objects to the approval of the petition.

Why we are asking. We must confirm that the consultation in the record was issued by an organization with expertise in the specific occupation the beneficiary will perform, that it is current, and that it speaks to the duties described in the petition rather than to the beneficiary in the abstract.

You may submit:

- a. A written advisory opinion, on the letterhead of the issuing organization, signed and dated by an officer or authorized representative whose name and title appear on the document;
- b. A statement within the opinion describing the issuing organization's expertise and its relationship to the beneficiary's occupation;
- c. A statement addressing the beneficiary's ability and achievements, the nature of the duties to be performed, and whether the organization objects to approval.

REQUEST 2 — LEAD OR STARRING PARTICIPATION IN PRODUCTIONS OR EVENTS WITH A DISTINGUISHED REPUTATION

What the law requires. 8 CFR 214.2(o)(3)(iv)(B)(1) asks for evidence that the beneficiary has performed, and will perform, services as a lead or starring participant in productions or events which have a distinguished reputation, as evidenced by critical reviews, advertisements, publicity releases, publications, contracts, or endorsements.

Why we are asking. A list of engagements does not by itself show either that the beneficiary's role was a lead or starring one, or that the production or event itself holds a distinguished reputation. Both elements must be independently documented.

You may submit:

- a. Programs, playbills, promotional materials, or credit blocks showing the beneficiary's billing position relative to other participants for each production relied upon;
- b. Evidence of the distinguished reputation of the production or event itself, such as critical reviews of the production, the history and standing of the presenting organization, its season or touring record, or awards received by the production;
- c. Contracts or engagement letters identifying the beneficiary's role and its relative importance to the production.

REQUEST 3 — NATIONAL OR INTERNATIONAL RECOGNITION THROUGH PUBLISHED MATERIAL

What the law requires. 8 CFR 214.2(o)(3)(iv)(B)(2) asks for evidence that the beneficiary has achieved national or international recognition for achievements, as shown by critical reviews or other published materials by or about the beneficiary in major newspapers, trade journals, magazines, or other publications.

Why we are asking. The record contains a tabular summary of press items at Exhibit C. A summary prepared by the petitioner is not a substitute for the published material itself, and the record does not establish that each cited outlet is a major newspaper, trade journal, magazine, or other publication. Published material that the beneficiary controls, or that is issued by the same organization that engaged the beneficiary, carries limited weight as independent recognition.

You may submit, for each published item relied upon:

- a. A complete copy of the published material, including the title, date, and author, and, if the material is not in English, a full certified English translation;
- b. Evidence of the circulation, readership, or intended audience of the publication in which the material appeared — for example, a media kit, audited circulation statement, or independent ranking of the outlet within the field;
- c. An explanation of how the material is about the beneficiary and relates to the beneficiary's work, as opposed to being a passing mention, a listing, or an event announcement;
- d. For any item published by the beneficiary, by an entity the beneficiary controls, or by an organization that employed or engaged the beneficiary, a statement identifying that relationship.

REQUEST 4 — RECORD OF MAJOR COMMERCIAL SUCCESS IN THE PERFORMING ARTS

What the law requires. 8 CFR 214.2(o)(3)(iv)(B)(4) asks for evidence that the beneficiary has a record of major commercial successes in the performing arts, as shown by such indicators as title, rating, standing in the field, box office receipts, and other occupational achievements reported in trade journals, major newspapers, or other publications.

Why we are asking. Page 9 of the petitioner's support letter asserts that the beneficiary's productions "achieved substantial commercial success" and that her recorded work "performed strongly." The assertions of counsel and of the petitioner are not evidence. This category is satisfied by objective, quantified data from a source independent of the petitioner and the beneficiary, together with a comparison showing why those figures are major relative to others in the field.

You may submit:

- a. Box office receipts, verified ticket-sales reports, or attendance statements issued by the venue or presenter, identified by production and date;
- b. Certified sales, distribution, licensing, or streaming figures issued by a label, distributor, or royalty administrator;
- c. Documented chart placements or industry rankings, with the name of the chart, the ranking body, the position achieved, and the dates of placement;
- d. Trade journal or major newspaper reporting of the above figures;
- e. An explanatory statement placing the figures in context — for example, comparative data for the same category, market, or season — so that we can assess whether the success is major rather than merely positive.

REQUEST 5 — ITINERARY AND TERMS OF EMPLOYMENT FOR THE ENTIRE VALIDITY PERIOD

What the law requires. Under 8 CFR 214.2(o)(2)(iv)(C) and (o)(2)(iv)(D), a petition filed by an agent for a beneficiary who will work for more than one employer must be accompanied by the contracts between the employers and the beneficiary, an itinerary of the definite dates of the services or engagements, the names and addresses of the establishments where the services will be performed, and evidence of the terms and conditions of employment. Under 8 CFR 214.2(o)(6)(iii), the approval period is limited to the time needed for the event or activity established by the record.

Why we are asking. You have requested a validity period of September 15, 2025 through September 14, 2028. The itinerary and engagement documents in the record must establish work or activity across that entire period. Engagements described as tentative, proposed, "to be confirmed," or subject to ongoing negotiation do not establish definite dates. Where the record supports a shorter period than requested, we may approve a shorter validity period.

You may submit:

- a. A revised itinerary listing, for each engagement across the full requested period, the definite beginning and ending dates, the name and address of each establishment or venue, and the nature of the services;
- b. A copy of the written contract between the beneficiary and each employer named on the itinerary, or, where the agreement is oral, a summary of its terms including the date, place, parties, duties, and compensation;
- c. For each employer for which the petitioner acts as agent, evidence of the agent's authority to act on that employer's behalf and evidence of the terms and conditions of that employment;
- d. If the record does not support the full three-year period, a written statement identifying the shorter period you wish us to consider.

REQUEST 6 — SIGNIFICANCE OF THE AWARDS AND PRIZES CLAIMED

What the law requires. Under 8 CFR 214.2(o)(3)(iv)(A), evidence that the beneficiary has been nominated for, or has received, a significant national or

international award or prize in the particular field may by itself establish eligibility. Where the award is not one of general public recognition, the record must establish its significance.

Why we are asking. Exhibit A names several honors. The names of the awards do not, by themselves, show the geographic scope of the competition, the size or composition of the candidate pool, the criteria applied, or the standing of the granting body in the field.

You may submit, for each award or nomination relied upon:

- a. The award certificate, citation, or official announcement naming the beneficiary and stating the date conferred;
- b. The published eligibility rules and selection criteria, showing whether the competition was local, national, or international in scope;
- c. The identity and professional credentials of the judges or selection panel;
- d. Evidence of the number of candidates, entrants, or nominees considered;
- e. Evidence of the reputation and reach of the granting organization, including independent reporting on the award.

HOW TO RESPOND

1. Place this entire notice on top of your response.
2. Send all requested evidence together in one mailing.
3. Submit copies, not originals, unless we specifically ask for an original.
Original documents submitted when not required may be destroyed after scanning.
4. Any document in a foreign language must be accompanied by a full English translation, certified by the translator as complete and accurate and as to the translator's competence, per 8 CFR 103.2(b)(3).

Mail your response to:

USCIS Cold Harbor Service Center
Attn: O Classification / RFE Unit
P.O. Box 82115
Cold Harbor Falls, VT 05802

WARNING AND NOTICES

If you do not respond by June 10, 2025, we may deny your petition, or deny it in part, based on the record as it now stands. A denial may not be appealed, though you may file a motion to reopen or reconsider.

Fraud and misrepresentation. If you submit a document that is false or altered, we may deny the petition, revoke an approval, refer the matter for criminal prosecution under 18 U.S.C. 1001, and permanently bar the beneficiary

from immigration benefits.

No inference of approval. This notice does not mean your petition has been approved or that the evidence already submitted has been accepted as sufficient. We may request further evidence after reviewing your response.

Do not file a duplicate petition while this request is pending. Duplicate filings delay processing.

If you have questions, call the USCIS Contact Center at 1-800-555-0143 (fictional number) and reference the receipt number at the top of this notice.

Sincerely,

H. Lindqvist-Ober
Supervisory Immigration Services Officer
Cold Harbor Service Center

Officer: TD/4419 — Team 22

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